

Stereo.HCJDA 38.
Judgment Sheet
LAHORE HIGH COURT
RAWALPINDI BENCH RAWALPINDI
JUDICIAL DEPARTMENT

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CIVIL REVISION NO.950-D of 2015

TANVEER MEHMOOD AWAN

Versus

ATIF HASEEB and another

JUDGMENT

Date of Hearing:	01.10.2025
Applicant by:	Mr. Muhammad Ilyas Sheikh, Advocate.
Respondent No.1 by:	Malik Muhammad Kabir, Advocate.
Respondent No.2 by:	Ex-parte.

MIRZA VIQAS RAUF, J. This revision application emerges from a suit for specific performance instituted by respondent No.1 (hereinafter referred to as “**respondent**”) wherein he asserted that the applicant being owner of the suit land agreed to sell his property to which effect agreement was reduced into writing on 24th November, 2003. In terms of the sale agreement total sale consideration was fixed as Rs.3,40,000/- out of which Rs.10,000/- was paid in cash to the applicant whereas a motorcar amounting to Rs.1,60,000/- was also handed over to him as part of sale consideration. It is asserted that in pursuance whereof, possession of suit land was also handed over to the **respondent**. As per averments contained in the plaint, the **respondent** then paid the major part of sale consideration through different cheques but when he asked the applicant to receive the remaining sale consideration, he refused and instead transferred the suit land to respondent No.2. Suit was resisted by the applicant being defendant, who though admitted the execution

of agreement but stated that as the **respondent** failed to pay the sale consideration to him, so he returned the part of sale consideration received by him and transferred the suit property to respondent No.2. The respondent No.2 also contested the suit and submitted that she is *bona fide* purchaser. From the divergent pleadings of the parties multiple issues were framed and evidence was recorded. On completion of evidence suit was decreed and the **respondent** was held entitled to recover Rs.3,60,000/- from the applicant as alternate specific remedy for breach of agreement. Feeling dissatisfied, the applicant preferred an appeal before learned District Judge, Attock whereas the **respondent** filed cross objections. Both were consolidated and decided through judgment and decree dated 29th September, 2015 whereunder appeal of the applicant was dismissed and while allowing the cross objections of the **respondent**, his suit was decreed as prayed for subject to deposit of remaining sale consideration, hence this application under Section 115 of the Code of Civil Procedure (V of 1908) (hereinafter referred to as “**C.P.C.**”).

2. Learned counsel for the applicant submitted that the applicant was ever willing and ready to perform his part of agreement and it was the **respondent** (vendee), who has failed to abide the terms of agreement. Learned counsel contended that overwhelming evidence was produced by the applicant in support of his case but the respondent was held entitled for Rs.3,60,000/- by the trial court without adverting to the material pieces of evidence. Learned counsel argued that learned District Judge while adopting a contra view allowed the cross objections of the **respondent** in an illegal and unlawful manner.

3. Conversely, learned counsel for the **respondent** submitted that the **respondent** has though successfully proved the transaction of sale and payment of sale consideration but the trial court has not properly adverted to these material pieces of evidence while declining the relief of specific performance. It is contended with vehemence that learned District Judge rightly interfered with the judgment of trial court and decreed the suit as prayed for, which judgment is unexceptionable.

4. Heard. Record perused.

5. Suit was rested on agreement to sell (Exhibit-P1). As per claim of the **respondent** in furtherance of the agreement to sell he paid an amount of Rs.3,10,000/- out of total sale consideration of Rs.3,40,000/- by various modes i.e. cash, car and cheques. On the other hand, the applicant while submitting his written statement though admitted the execution of agreement but not in clear words. He, however, conceded that as a part of sale consideration the **respondent** handed over him a car but it was since not in the name of **respondent** so returned to him. Both the sides produced their respective evidence in the process of which it has come on the record that the **respondent** succeeded in proving the execution of agreement to sell and payment of part of sale consideration.

6. Leaving aside unnecessary discussion to this effect it would be advantageous to straightaway advert to the statement of applicant, who appeared as DW1. The relevant extract from the statement of applicant is reproduced below :-

"--- معاندہ مذکورہ مدعی نے خود توڑا تھا۔ میں نے مدعا علیہ نمبر 2 کو اپنی جائیداد درست طور پر منتقل کی تھی۔ جو کہ بابہ بدل تھی میں نے مدعی کو اراضی متدعوہ کا قبضہ نہ دیا تھا۔ اور نہ ہی اُس نے وہاں پر کوئی بنیادیں بنائیں تھیں۔ مدعی کا موقف ادائیگی رقم غلط ہے۔۔۔۔۔ یہ درست ہے کہ اسٹامپ Ex-P1 کے مطابق میں نے اراضی متدعوہ تعدادی 16 مرلہ ملکیتی خود مدعی کو دینے کا سودا کیا۔ یہ سودا -/3,40,000 روپے میں طے پایا تھا۔ یہ غلط ہے کہ بوقت تحریر اسٹامپ مدعی نے مجھے -/1,70,000 روپے نقد ادا کیے تھے۔ یہ درست ہے کہ بوقت تحریر اسٹامپ میں نے 1 عدد کار نمبری STA/3111 وصول کی تھی۔ یہ درست ہے کہ مذکورہ کار کی قیمت مطابق اسٹامپ -/1,60,000 روپے تھی۔ یہ درست ہے کہ اسٹامپ Ex-P1 کے مطابق تحریر اسٹامپ 1,70,000 روپے وصول ہوئے اور -/1,70,000 روپے بقایا تھے۔۔۔۔۔"

From the bare perusal of the statement of the applicant himself there remains no cavil that he entered into an agreement to sell with the **respondent** and in furtherance thereof, he received Rs.1,70,000/- as part of sale consideration. It is though stance of the applicant that he returned the car to the **respondent** on account of defect in his title but an iota of evidence is not available to this effect. To prove the payment of sale consideration the **respondent** examined Irshad Farooq Supervisor United Bank Limited (UBL) Attock City as PW4.

From whose statement it is crystal clear that through cheque further Rs.10,000/- was also paid to the applicant. Thus in toto the applicant received an amount of Rs.1,80,000/- from the **respondent**. This was the opinion of the trial court as well, which is undoubtedly founded on proper appraisal of evidence. The **respondent** however, failed to pay the remaining sale consideration as a result of which the applicant further transferred the suit land to respondent No.2, who while resisting the suit pleaded her *bona fide* and succeeded to establish the same, so her rights are protected under Section 41 of the Transfer of Property Act, 1882.

7. Section 22 of the Specific Relief Act, 1877 ordains that the relief of specific performance is discretionary relief and it depends upon the judicial conscious of the court, either to grant or refuse the same to the person claiming right under agreement. The court is empowered to refuse the relief of specific performance even in the cases where the agreement was validly proved by the plaintiff. The plaintiff cannot claim the relief of specific performance as a matter of right. Law is well settled that agreement to sell does not confer any right to the proposed vendee in the property, subject matter of the said agreement. At the most agreement to sell equips the vendee(s) with a remedy to institute a suit for specific performance for the enforcement of such agreement. The **respondent** was obliged to establish his alleged right in the suit land in the light of alleged agreement to sell by leading cogent and convincing evidence. The **respondent** though succeeded in establishing the part payment but total sale consideration was yet to be paid which casts serious aspersions on his claim. The relief of specific performance even otherwise is discretionary and it depends upon the judicial conscience of the court, either to grant or refuse the same to the person(s) claiming right under agreement to sell. The court is empowered to refuse the relief of specific performance even in the cases where the agreement to sell was validly proved by the plaintiff(s). The plaintiff(s) cannot claim the relief of specific performance as a matter of right. Reliance in this respect, if needed, can be placed on Mrs. ZAKIA HUSSAIN and another versus Syed FAROOQ HUSSAIN (PLD

2020 Supreme Court 401), Sheikh AKHTAR AZIZ versus Mst. SHABNAM BEGUM AZIZ (2019 SCMR 524), Hafiz MUHAMMAD IQBAL versus GUL-E-NASREEN and others (2019 SCMR 1880) and FARZAND ALI and another versus KHUDA BAKHSH and others (PLD 2015 Supreme Court 187).

8. In the wake of above discussion, when it is proved on the record that Rs.1,80,000/- was received by the applicant as part of sale consideration and there is only a small peccadillo on the part of **respondent**, he is entitled for the return of his amount. While forming above opinion one can also not loose sight of the fact that there is notable hike in the inflation, so in order to avoid any prejudice to any of the parties to the lis, I deem it appropriate to direct the applicant (vendor) to pay sum of Rs.11,00,000/- as additional consideration in view of devaluation of currency as he has utilized the said amount during this period. In this context, I am fortified with the judgment of the Supreme Court of Pakistan in the cases of Mst. MEHMOODA BEGUM versus Syed HASSAN SAJJAD and 2 others (PLD 2010 Supreme Court 952) and MUHAMMAD HUSSAIN and others versus Dr. ZAHOOR ALAM (2010 SCMR 286).

9. For the foregoing reasons, the instant petition is **partly allowed**, while modifying the impugned judgment and decree dated 29th September, 2015 passed by learned District Judge, Attock, as a result thereof, suit instituted by the **respondent** shall stand **partly decreed** holding him entitled for the amount of **Rs.11,00,000/-** from the applicant in addition to the amount of **Rs.1,80,000/-** within **two months from today** and in case of failure to pay said amount within specified period to the **respondent**, the applicant shall be liable to pay interest at the prevailing bank rate. No order as to costs.

(MIRZA VIQAS RAUF)
JUDGE

APPROVED FOR REPORTING

JUDGE